

23NWCV01526 23NWCV01526

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-15

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Travis Wellard v. Guzman,

23NWCV01526

This assault and battery action was filed on May 16, 2023. Trial is scheduled to begin on July 20, 2026. Plaintiff Travis Wellard (Plaintiff) now applies ex parte to continue the trial date to January 21, 2027 or a date thereafter and for all related cut-off dates to correspond with the new trial date. Plaintiff argues good cause exists because Defendant has failed to comply with discovery orders and Plaintiff seeks to file an amended Motion for Terminating Sanctions based on Defendant's noncompliance.

Plaintiff's ex parte application to continue trial and related dates is GRANTED pursuant to California Rules of Court, rule 3.1332(c)(6) – “[a] party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts.” A continuance to the week of January 21, 2027 or thereafter is reasonable. The Court will confer with the parties to select new trial and FSC dates. The discovery cut-off date and related deadlines will correspond with the new trial date. Moving party to give notice.